



CHAPTER xlv.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Cardiff Haverfordwest Maryport and Southampton and the North Bierley Joint Hospital District. A.D. 1914.
[8th July 1914.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875: 38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1914. Short title.

A.D. 1914.

SCHEDULE.

CITY OF CARDIFF.

*Cardiff Order. Provisional Order for partially repealing and altering the
Cardiff Corporation Act 1884 and the Cardiff Corporation
Act 1898.*

To the Lord Mayor Aldermen and Citizens of the City of
Cardiff;—

And to all others whom it may concern.

WHEREAS the City of Cardiff (herein-after referred to as “the City”) is an Urban Sanitary District of which the Lord Mayor Aldermen and Citizens acting by the Council (herein-after referred to as “the Corporation”) are the Urban Sanitary Authority;

And whereas there are in force in the City the unrepealed provisions of the Cardiff Corporation Act 1884 the Cardiff Corporation Act 1894 and the Cardiff Corporation Act 1898 (each of which Acts is herein-after separately referred to as the Act of the year in which it was passed and all which Acts are herein-after collectively referred to as “the Local Acts”) as altered by the Cardiff Order 1909 (herein-after referred to as “the Order of 1909”) which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 3) Act 1909;

47 & 48 Vict. c. ccxxii.
57 & 58 Vict. c. clxi.
61 & 62 Vict. c. cxxviii.
9 Edw. 7. c. cxix.

And whereas by Section 90 of the Act of 1884 the Corporation were empowered from time to time to exercise any statutory borrowing power by creation of stock to be from time to time issued in accordance with the provisions of the Act of 1884 and by Section 93 of the Act of 1884 it was provided that for the payment of dividends on all Corporation Stock and the redemption and extinction or purchase and extinction of all Corporation Stock there should be established and formed a fund called the Cardiff Corporation Loans Fund (in that part of the Act of 1884 and herein-after referred to as “the loans fund”);

And whereas by Section 98 of the Act of 1884 provision is made for the application of the loans fund;

And whereas by Section 91 of the Act of 1894 it is enacted that it shall not be lawful for the Corporation after the passing of the Act of 1894 to create or issue irredeemable stock;

[4 & 5 GEO. 5.] *Local Government Board's* [Ch. xlv.]
Provisional Orders Confirmation (No. 2) Act, 1914.

And whereas by subsection (1) of Section 62 of the Act of 1898 A.D. 1914.
the Corporation are empowered from time to time to create and issue *Cardiff Order.*
redeemable stock bearing a rate of dividend which need not be one
and the same for all such stock and by subsection (4) of that section
provision is made for the establishment of a separate loans fund in
respect of each class of stock which bears the same rate of dividend
and by the said section as altered by Article IX. of the Order of 1909
and subject to the provisions of the said section all the provisions of
the Act of 1884 as amended by the Act of 1894 and the Order of 1909
are made applicable to each class of stock;

And whereas the Corporation have made application to the Local
Government Board for the issue of a Provisional Order to partially
repeal alter or amend the Local Acts as altered as aforesaid in the
manner herein-after set forth:

Now therefore We the Local Government Board in pursuance of
the powers given to Us by Section 303 of the Public Health Act 1875 38 & 39 Vict.
and by any other Statutes in that behalf do hereby order that from c. 55.
and after the date of the Act of Parliament confirming this Order the
Local Acts shall be partially repealed and altered so that the following
provisions shall take effect namely:—

Art. I. Section 98 of the Act of 1884 shall be repealed and in *Application*
substitution therefor the following provisions shall have effect that is *and use of*
to say:— *loans fund.*

“ 98.—(1) The Corporation shall from time to time apply the loans
“ fund first in paying the dividends on all Corporation
“ Stock and next in redeeming Corporation Stock according
“ to the terms of issue and purchasing Corporation Stock
“ for extinction.

“ (2) Where the Corporation have any statutory bor-
“ rowing power the Corporation instead of raising moneys
“ in the exercise of the statutory borrowing power by the
“ creation and issue of additional Corporation Stock may
“ subject to this section exercise the statutory borrowing
“ power either wholly or partially by using for the purpose
“ any moneys for the time being forming part of the loans
“ fund and standing to the credit of any separate account
“ or separate accounts forming part of the general account
“ of the loans fund and not required for the payment of
“ dividends on Corporation Stock.

“ (3) Where the Corporation determine to proceed in
“ the manner authorised by subsection (2) of this section
“ the Corporation shall pass a resolution to that effect and

[Ch. xlv.] *Local Government Board's* [4 & 5 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1914.

A.D. 1914.

Cardiff Order.

“ shall by the resolution prescribe all such matters or
“ things as in or in pursuance of this section are referred
“ to as prescribed or are required to be prescribed and
“ after passing the resolution the Corporation shall—

“ (a) withdraw from the loans fund the prescribed sum
“ which shall be equal to the amount of the statutory
“ borrowing power proposed to be exercised and that
“ sum shall be deemed to be withdrawn from such
“ separate account or separate accounts in the general
“ account of the loans fund as shall be prescribed;
“ and

“ (b) deduct from the amount of Corporation Stock for
“ the time being chargeable to the undertaking or pur-
“ pose or attributable to the exercise of the borrowing
“ power to which a separate account prescribed as afore-
“ said has reference a portion of stock at par value equal
“ to the sum withdrawn from that separate account and
“ transfer that portion of stock as from the prescribed
“ date to the separate account in respect of which the
“ statutory borrowing power is exercised under this
“ section.

“ (4) The provisions of this Act shall apply—

“ (a) to the moneys withdrawn from the loans fund
“ and used as aforesaid as though the moneys so
“ withdrawn had been applied in the redemption of
“ Corporation Stock at par on the separate account
“ or separate accounts from which the moneys were
“ withdrawn and as though the moneys so used
“ had been raised by the issue of additional Cor-
“ poration Stock for the purposes of the separate
“ account in respect of which the statutory borrowing
“ power is exercised under this section; and

“ (b) to the stock deducted and transferred as
“ aforesaid as though the stock so deducted had in
“ pursuance of this Act been redeemed by the
“ application of the loans fund on the separate
“ account or separate accounts from which the stock
“ was deducted but subject to the condition that
“ the said stock shall not be cancelled and as though
“ the stock so transferred were additional Corporation
“ Stock expressly issued for the purposes of the
“ separate account in respect of which the statutory
“ borrowing power is exercised under this section.”

[4 & 5 GEO. 5.] *Local Government Board's* [Ch. xlv.]
Provisional Orders Confirmation (No. 2) Act, 1914.

Art. II. Section 62 of the Act of 1898 so far as that section as altered by Article IX. of the Order of 1909 applies to each class of stock therein mentioned the provisions of the Act of 1884 as amended by the Act of 1894 and the Order of 1909 shall have effect as if such of the provisions of this Order as are substituted for the statutory provisions so applied by the said section were in substitution for those statutory provisions made applicable to each class of stock created in pursuance of that section.

A.D. 1914.
Cardiff Order.
 Application of substituted provisions to new classes of stock.

Art. III. This Order may be cited as the Cardiff Order 1914 and the Order of 1909 and this Order may be cited together as the Cardiff Orders 1909 and 1914.

Short titles.

Given under the Seal of Office of the Local Government Board
 this Sixth day of March One thousand nine hundred and
 fourteen.

(L.S.)

HERBERT SAMUEL President.
 H. C. MONRO Secretary.

BOROUGH OF HAVERFORDWEST.

*Provisional Order for altering a Local Act and a
 Confirming Act.*

*Haverford-
 west Order.*

To the Mayor Aldermen and Burgesses of the Borough of
 Haverfordwest ; —

And to all others whom it may concern.

WHEREAS the Borough of Haverfordwest (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban District Council and the local authority within the meaning of the Public Health Act 1875 ;

And whereas there are in force in the Borough the unrepealed provisions of a Local Act passed in the fifth and sixth years of the reign of His late Majesty King William the Fourth and intituled " An Act for paving lighting and otherwise improving the Town of Haverfordwest and the adjoining Townships of Prendergast and Cartlett in the Parishes of Prendergast and Uzmaston in the County of Pembroke " (which Act is herein-after referred to as " the Local Act ") as altered by a Provisional Order dated the Seventh day of May One thousand eight hundred and seventy-eight and confirmed by the Local Government Board's Provisional Orders Confirmation (Bournemouth &c.) Act 1878 (which Order and Act are herein-after respectively referred

5 & 6 Will. 4.
 c. lxxiii.

41 & 42 Vict.
 c. clxii.

[Ch. xlv.] *Local Government Board's* [4 & 5 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1914.

A.D. 1914. to as "the Order of 1878" and "the Confirming Act of 1878") and
Haverford- by another Provisional Order duly confirmed by Parliament which does
west Order. not affect the subject of this Order;

And whereas by Section 107 of the Local Act the predecessors of the Corporation were empowered to borrow upon the security therein mentioned the sum of ten thousand pounds for the purpose of carrying the Local Act into execution;

And whereas by Article 2 of the Order of 1878 it was provided that Section 107 of the Local Act should be altered and amended so as to enable the Corporation subject to the sanction of the Local Government Board to borrow under the provisions of the said section and for the purposes of their gas undertaking any sum or sums not exceeding in the whole the sum of five thousand pounds in addition to the sum of ten thousand pounds mentioned in the section;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act as altered as aforesaid and the Confirming Act of 1878 in the manner herein-after set forth:

38 & 39 Vict. Now therefore We the Local Government Board in pursuance of
c. 55. the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act as altered as aforesaid and the Confirming Act of 1878 so far as it relates to the Order of 1878 shall be altered so that the following provisions shall take effect that is to say:—

Additional
borrowing
powers for
purposes of
gas under-
taking.

Art. I. The Local Act as altered as aforesaid and the Confirming Act of 1878 so far as it relates to the Order of 1878 shall have effect as if the words "ten thousand pounds" were inserted in Article 2 of the Order of 1878 instead of the words "five thousand pounds."

Short titles.

Art. II. This Order may be cited as the Haverfordwest Order 1914 the Order of 1878 may be cited as the Haverfordwest Order 1878 and this Order and the Order of 1878 may be cited together as the Haverfordwest Orders 1878 and 1914.

Given under the Seal of Office of the Local Government Board
this Sixth day of March One thousand nine hundred and
fourteen.

(L.S.)

HERBERT SAMUEL President.
H. C. MONRO Secretary.

URBAN DISTRICT OF MARYPORT.

A.D. 1914.

*Provisional Order for partially repealing and altering certain
Local Acts and a Confirming Act.*

*Maryport
Order.*

To the Urban District Council of Maryport ;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Maryport (herein-after referred to as “the Council”) are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Maryport (herein-after referred to as “the District”);

And whereas the unrepealed provisions of the Maryport Improvement and Harbour Act 1866 the Maryport District and Harbour Act 1868 the Maryport District and Harbour (Gas) Act 1877 and the Maryport Improvement Act 1878 (which Acts are herein-after collectively referred to as “the Local Acts” and each of which Acts is herein-after separately referred to as the Act of the year in which it was passed) as altered by the Maryport Order 1886 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1886 (which Order and Confirming Act are herein-after respectively referred to as “the Order of 1886” and “the Confirming Act of 1886”) and by another Provisional Order duly confirmed by Parliament which does not affect the subject-matter of this Order are in force in that part of the District which immediately before the date of the coming into operation of the County of Cumberland (Maryport) Confirmation Order 1894 (herein-after referred to as “the Confirmation Order of 1894”) comprised the area described in that Order as the Urban Sanitary District of Maryport and which is herein-after referred to as “the Local Act District”;

29 & 30 Vict.
c. ccxlv.
31 & 32 Vict.
c. lxx.
40 Vict.
c. xxxviii.
41 & 42 Vict.
c. cliii.

50 Vict. c. xv.

And whereas by the Local Acts and the Order of 1886 the Council or their predecessors were empowered to borrow moneys for the purposes of their gas undertaking and it is expedient that the Council be empowered to borrow further moneys for those purposes;

And whereas the Council have made application to the Local Government Board for the issue of a Provisional Order to partially repeal alter or amend the Local Acts and the Confirming Act of 1886 in the manner herein-after set forth:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this

38 & 39 Vict.
c. 55.

[Ch. xlv.] *Local Government Board's* [4 & 5 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1914.

A.D. 1914. Order the Local Acts and the Confirming Act of 1886 so far as it relates to the Order of 1886 shall be partially repealed and altered so that the following provisions shall take effect that is to say:—
 Maryport
 Order.

Additional
borrowing
powers for
gas under-
taking.

Art. I. The Council may with the sanction of the Local Government Board and subject to the provisions of this Order borrow upon the security of the revenue of their gas undertaking and of the district fund established in pursuance of Section 169 of the Act of 1866 as affected by the operation of the Confirmation Order of 1894 and of the district rate so far as that rate is separately assessed upon or is chargeable with expenses incurred in relation exclusively to the Local Act District or upon either of those securities such sum or sums not exceeding in the whole the sum of Fifteen thousand pounds as may be necessary for the purposes of their gas undertaking in addition to the sums which they are already authorised to borrow for those purposes.

Local Loans
Act and cer-
tain provisions
of Public
Health Act
made appli-
cable.

Art. II. For the purpose of raising money in the exercise of the powers of borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Council and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed on mortgage under this Order.

Period for
repayment
of borrowed
moneys.

Art. III. The moneys borrowed under Article I. of this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Council with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is herein-after referred to as "the prescribed period" and shall with reference to the repayment of those moneys be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

Mode of
repayment.

Art. IV.—(1) The Council shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

Formation
maintenance
and applica-
tion of sink-
ing fund.

(2) Subject to the provisions of Article V. of this Order if the Council determine to repay by means of a sinking fund any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called an accumulating sinking fund.

A.D. 1914.

Maryport
Order.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Council and the Council shall be at liberty from time to time to vary and transpose the investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(5) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6)--(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Council:

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Council in addition to the payments provided for by this Order.

[Ch. xlv.] *Local Government Board's* [4 & 5 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1914.

A.D. 1914.

*Maryport
Order.*

Increase re-
duction or
discontinu-
ance of pay-
ments to
sinking fund.

Art. V.—(1) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(2) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board approve.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of the Board discontinue the equal annual payments to the sinking fund until the Board otherwise direct.

Surplus of
sinking fund.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine.

Power to
re-borrow.

Art. VI.—(1) The Council shall have power—

(a) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

[4 & 5 GEO. 5.] *Local Government Board's* [Ch. xlv.]
Provisional Orders Confirmation (No. 2) Act, 1914.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

A.D. 1914.

Maryport
Order.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (a) by instalments or annual payments; or
- (b) by means of a sinking fund; or
- (c) out of moneys derived from the sale of land; or
- (d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Art. VII. All moneys from time to time borrowed under this Order shall be applied by the Council only for the purposes for which the same are respectively authorised to be borrowed excepting that moneys which may have been borrowed in excess of the amount required shall be applied in such manner as the Council with the approval of the Local Government Board determine.

Application
of borrowed
moneys.

Art. VIII.—(1) Subject to the provisions of this Article any mortgagee of the Council in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

Receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him:

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Art. IX.—(1) Subsection (4) of Section 34 of the Act of 1877 and subdivisions (7) and (8) of Article VI. and Article VIII. of the Order of 1886 and so much of the Confirming Act of 1886 as relates to that subsection and to those subdivisions of Article VI. and to Article VIII. of the Order of 1886 are hereby repealed.

Return as to
provision for
repayment of
debt.

(2) The clerk to the Council shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months

[Ch. xlv.] *Local Government Board's* [4 & 5 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1914.

A.D. 1914. next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of the Act of 1877 the Order of 1886 or this Order or in respect of any money raised for the purposes of the gas undertaking of the Council and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the clerk showing for the year next preceding the making of the return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

*Maryport
Order.*

(3) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by the Act of 1877 the Order of 1886 or this Order or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Board may by order direct that the sum in their order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as is mentioned in the said order and any such order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

*Inquiries and
expenses.*

Art. X. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Council and the Board

[4 & 5 GEO. 5.] *Local Government Board's* [Ch. xlv.]
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may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Council shall be a debt due to the Crown from the Council. A.D. 1914.
Maryport
Order.

Art. XI. This Order may be cited as the Maryport Order 1914 and the Maryport Orders 1886 and 1909 and this Order may be cited together as the Maryport Orders 1886 to 1914. Short titles.

Given under the Seal of Office of the Local Government Board
this Fourth day of March One thousand nine hundred and
fourteen.

(L.S.)

HERBERT SAMUEL President.

H. C. MONRO Secretary.

BOROUGH OF SOUTHAMPTON.

*Provisional Order for altering the Southampton Corporation
Act 1885 and the Local Government Board's Provisional
Orders Confirmation (No. 11) Act 1891.* *Southampton*
Order.

To the Mayor Aldermen and Burgesses of the Borough of
Southampton ; —

And to all others whom it may concern.

WHEREAS the Borough of Southampton (herein-after referred to as "the Borough") is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority ;

And whereas there are in force in the Borough the unrepealed provisions of the Southampton Corporation Act 1885 (herein-after referred to as "the Local Act") as altered by the Southampton Orders 1891 to 1902 and by another Provisional Order duly confirmed by Parliament which does not affect the subject-matter of this Order ; 48 & 49 Vict.
c. clxx.

And whereas by Section 27 of the Local Act the Corporation were empowered to borrow for the purposes of their water undertaking sixty thousand pounds ;

And whereas by Article II. of the Southampton Order 1891 (herein-after referred to as "the Order of 1891") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 11) Act 1891 (herein-after referred to as "the Confirming Act of 1891") as altered by the Southampton Order 1894 the Southampton Order 1897 the Southampton Order 1899 and the Southampton Order 1902 which Orders were also confirmed by Parliament the Corporation were empowered with the sanction of the Local Government Board and subject 54 & 55 Vict.
c. cvii.

[Ch. xlv.] *Local Government Board's* [4 & 5 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1914.

A.D. 1914. to the provisions of the Order of 1891 to borrow for the purposes of
Southampton their water undertaking on the security therein mentioned such sums
Order. as they might from time to time think requisite not exceeding in the
whole the sum of one hundred and thirty-nine thousand five hundred
pounds in addition to the sum authorised by the Local Act to be
borrowed for those purposes;

And whereas by Article IV. of the Order of 1891 the moneys
borrowed under that Order are required to be repaid within such
periods not exceeding thirty years from the date of borrowing as the
Corporation with the sanction of the Local Government Board shall
determine;

And whereas the Corporation have made application to the Local
Government Board for the issue of a Provisional Order to alter or
amend the Local Act as altered as aforesaid and the Confirming Act
of 1891 in the manner herein-after set forth:

38 & 39 Vict. Now therefore We the Local Government Board in pursuance of
c. 55. the powers given to Us by Sections 297 and 303 of the Public Health
Act 1875 and by any other Statutes in that behalf do hereby order
that from and after the date of the Act of Parliament confirming this
Order the Local Act as altered as aforesaid and the Confirming Act
of 1891 so far as it relates to the Order of 1891 shall be altered so
that the following provisions shall take effect that is to say:—

Increase of Art. I. The Local Act as altered as aforesaid and the Confirming
borrowing powers for Act of 1891 so far as it relates to the Order of 1891 shall have effect
purposes of as if the words “two hundred and fourteen thousand five hundred
water under- pounds” were inserted in Article II. of that Order instead of the
taking. words “six thousand pounds”.

Altering Art. II. The Local Act as altered as aforesaid and the Confirming
period for Act of 1891 so far as it relates to the Order of 1891 shall have effect
repayment and shall be deemed to have always had effect as if the words “not
of borrowed exceeding sixty years” had been inserted in Article IV. of that Order
moneys. instead of the words “not exceeding thirty years”.

Short titles. Art. III. This Order may be cited as the Southampton Order 1914
and the Southampton Orders 1891 to 1902 and this Order may be cited
together as the Southampton Orders 1891 to 1914.

Given under the Seal of Office of the Local Government Board
this Eleventh day of February One thousand nine hundred
and fourteen.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

NORTH BIERLEY JOINT HOSPITAL DISTRICT.

A.D. 1914.

Provisional Order for altering the Local Government Board's *North Bierley*
Provisional Orders Confirmation (No. 9) Act 1888. *Order.*

To the North Bierley Joint Hospital Board ;—

To the Lord Mayor Aldermen and Citizens of the City of
Bradford ;—

To the Urban District Council of Cleckheaton ;—

To the Urban District Council of Hunsworth ;—

And to all others whom it may concern.

WHEREAS by virtue of the North Bierley Joint Hospital Order 1888
which was confirmed by the Local Government Board's Provisional 51 & 52 Vict.
Orders Confirmation (No. 9) Act 1888 (which Order and Act are herein- c. cii.
after respectively referred to as "the Order of 1888" and "the Confirming
Act of 1888") as altered by the North Bierley Joint Hospital Order 1896
which was confirmed by the Local Government Board's Provisional Orders 59 & 60 Vict.
Confirmation (No. 9) Act 1896 and of an Order of the Local Government c. civ.
Board made in pursuance of the last-mentioned Order and dated the
Thirty-first day of May One thousand nine hundred (herein-after referred
to as "the Adapting Order of 1900") part of the City of Bradford
and the Urban Districts of Cleckheaton and Hunsworth constitute a
United District called the North Bierley Joint Hospital District of
which the governing body is the North Bierley Joint Hospital Board
(herein-after referred to as "the Joint Board") ;

And whereas by Article X. of the Order of 1888 it is provided
amongst other things that at all meetings of the Joint Board five
members shall constitute a quorum and it is expedient that the
number be reduced from five to four :

Now therefore We the Local Government Board in pursuance of the
powers given to Us by Section 297 of the Public Health Act 1875 and 38 & 39 Vict.
by any other Statutes in that behalf do hereby order that from and c. 55.
after the date of the Act of Parliament confirming this Order the
Confirming Act of 1888 so far as it relates to the Order of 1888 shall
be altered so that the following provisions shall take effect that is
to say :—

Art. I. The Order of 1888 shall have effect as if the word "four" Reduction in
were inserted in Article X. of that Order instead of the word "five." number of
members to form
a quorum.

Art. II. This Order may be cited as the North Bierley Joint Short titles.
Hospital Order 1914 and the North Bierley Joint Hospital Orders 1888

[Ch. xlv.] *Local Government Board's* [4 & 5 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1914.

A.D. 1914. and 1896 the Adapting Order of 1900 and this Order may be cited
North Bierley together as the North Bierley Joint Hospital Orders 1888 to 1914.
Order.

Given under the Seal of Office of the Local Government Board
this Thirteenth day of January One thousand nine hundred
and fourteen.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

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